

EASEMENT AGREEMENT

Instrument No. BK 88 PG 302 Rosebud County, MT

GRANT OF EASEMENT

Rosebud County grants to Spring Creek Coal (NTEC) a non-exclusive easement across the servient estate described below for the installation, operation, and maintenance of the facilities described herein.

Legal Description:	T4S R41E Sec 18
Area:	14.2 acres
Effective Date:	August 15, 2018
Expiration:	August 14, 2038
Consideration:	\$3,000 annually

COVENANTS

- The easement runs with the land and binds the successors and assigns of the parties.
- Grantee shall maintain insurance and furnish a current certificate of insurance annually.
- Grantee shall repair any damage to the servient estate arising from its use of the easement.

NOTES

20-yr easement for water conveyance. COI renewal required annually.

GRANTOR - Rosebud County

GRANTEE - Spring Creek Coal (NTEC)

Date: _____

Date: _____